



CHAPTER ii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to the Edinburgh Merchant Company Widows' Fund.
[10th December 1947.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament: 26 Geo. 5 &
1 Edw. 8. c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Edinburgh Merchant Company Widows' Fund (Amendment) Order Confirmation Act 1947. Short title.

SCHEDULE.

EDINBURGH MERCHANT COMPANY WIDOWS' FUND (AMENDMENT).

Provisional Order to amend the provisions of Part III—Widows' Fund—of the Edinburgh Merchant Company Act 1898 relative to the Trustees of the Widows' Fund of the Company of Merchants of the City of Edinburgh.

61 & 62 Vict.
c. xxii.

WHEREAS by Part III—Widows' Fund—of the Edinburgh Merchant Company Act 1898 (in this Order called "the Act of 1898") the Edinburgh Merchant Company were authorised and required to maintain and continue the fund for the benefit of widows of the members of the Company of Merchants of the City of Edinburgh known as the "Widows' Fund" (in this Order called "the Widows' Fund"):

And whereas by the Act of 1898 the Trustees of the Widows' Fund of the Company of Merchants of the City of Edinburgh (in this Order called "the Trustees") were incorporated and provision was made by the Act of 1898 for the management and administration of the Widows' Fund by the Trustees in accordance with the provisions of the Act of 1898:

And whereas it has been decided to increase the annuities paid out of the Widows' Fund to the widows of contributors:

And whereas it is expedient that in accordance with the provisions of the Act of 1898 future contributors to the Widows' Fund should pay increased contributions:

And whereas it is expedient that the method of payment of such increased contributions should be amended as provided in this Order:

And whereas it is expedient that certain other provisions of Part III—Widows' Fund—of the Act of 1898 should be repealed and that the provisions contained in this Order should be enacted in lieu thereof:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

26 Geo. 5. &
1 Edw. 8. c. 52.

Now therefore in pursuance of the powers contained in the said Act the Secretary of State orders as follows:—

Short title.

1. This Order may be cited as the Edinburgh Merchant Company Widows' Fund (Amendment) Order 1947.

Commencement
of Order.

2. This Order shall commence and have effect on the date of the passing of the Act confirming the same which date is hereinafter referred to as "the commencement of this Order."

Interpretation.

3. In this Order the several words and expressions to which meanings are assigned by the Act of 1898 shall have the same respective meanings unless there be something in the subject or context repugnant to that construction.

II GEO. 6. *Edinburgh Merchant Company* Ch. ii.
Widows' Fund (Amendment) Order Confirmation Act, 1947.

4. On the commencement of this Order the following provisions of Repeal. the Act of 1898 (namely):—

- Section 63 (Payments by contributors to Widows' Fund);
- Section 64 (Deductions from annuity in certain cases);
- Section 65 (Redemption of annual contributions);
- Section 66 (Marriage tax);
- Section 68 (Exemptions from marriage tax &c.);
- Section 83 (Periodical investigation of Widows' Fund);
- Section 88 (Further provisions as to increase of entry money and contributions); and
- Section 89 (Addition may be made on entry money or on contributions or partly on both);

shall without prejudice to anything done or suffered under the said provisions be repealed and subject to the other provisions of the Act of 1898 the following provisions shall apply in lieu thereof and this Order shall be construed as one with the Act of 1898.

5.—(1) Every person who becomes a contributor after the commencement of this Order shall pay to the Widows' Fund within ten days after his admission to the company in name of entry money the sum of one hundred pounds or such other sum as may for the time being be fixed by the contributors. Payments by contributors to Widows' Fund.

(2) (a) Subject to the provisions of this Order every such person who at the date of his admission to the company is married and under fifty-five years of age shall pay at the first term of Whitsunday or Martinmas occurring after his admission the sum shown in the table set out in the First Schedule to this Order (or any alterations thereof prepared by the actuary and approved by the contributors before the date of his admission) as being appropriate according to the age of such person at his next birthday after his admission and he shall continue to pay at each term of Whitsunday and Martinmas thereafter the like sum until he has made two payments in each year for the number of years equal to the difference between his age at his next birthday after his admission and the age of sixty years or such other age as may have been fixed by the contributors before the date of his admission.

(b) Subject to the provisions of this Order every such person who at the date of his admission to the company was not married and is under fifty-five years of age when he marries shall pay at the first term of Whitsunday or Martinmas occurring after his marriage the sum shown in the table set out in the First Schedule to this Order (or any alterations thereof prepared by the actuary and approved by the contributors before the date of his admission) as being appropriate to the age of such person at his next birthday following his marriage and he shall continue to pay at each term of Whitsunday and Martinmas thereafter the like sum until he has made two payments in each year for the number of years equal to the difference between his age at his next birthday after his marriage and the age of sixty years or such other age as may have been fixed by the contributors before the date of his admission.

(c) Every such person who—

(i) at the date of his admission to the company was married and fifty-five years of age or more; or

(ii) not being married at the said date is fifty-five years or more at the date of his marriage;

shall pay within ten days after his admission or his marriage as the case may be the sum of four hundred and thirteen pounds (or such other sum as may have been fixed by the actuary and approved by the contributors before the date of his admission).

(3) Except as otherwise specially provided in this Order the annual contributions (so far as payable) of all persons who are contributors at the commencement of this Order shall continue payable by such persons in accordance with the provisions in force immediately before the commencement of this Order.

6. In the case of a person who becomes a contributor after the commencement of this Order and—

(a) is married at the date of his admission; or

(b) subsequently marries;

and who dies before completing his contributions to the Widows' Fund payment of the half-yearly payments which would but for the provisions of this section fall due subsequent to the date of death of such person shall not be exigible.

7.—(1) In the case of a contributor admitted before the commencement of this Order who dies leaving a widow before completing his contributions to the Widows' Fund the amount of the contributions for so much of the space of thirteen or more years as remains unexpired shall be deducted from the annuity payable to the widow of such contributor by half-yearly instalments of such amount as the Trustees may in their discretion fix.

(2) In the case of any such contributor who dies and does not leave a widow any contributions for the said unexpired space shall cease and be no longer exigible.

8.—(1) (a) Every member admitted after the commencement of this Order who is liable in payment of the half-yearly contributions to the Widows' Fund may within ten days after his admission and every member who under the provisions of this Order may become liable in payment of such half-yearly contributions may within ten days after becoming so liable redeem the whole of the half-yearly contributions payable by him by making payment to the Widows' Fund in accordance with the table set out in the Second Schedule to this Order (or any alterations thereof prepared by the actuary and approved by the contributors for the time being) the sum shown in the said table as being appropriate according to the age of such member at his next birthday after his admission if he be then married or according to the age of such member at his next birthday after his marriage if he be not married when admitted.

(b) Every member admitted before the commencement of this Order who under the provisions of the Act of 1898 may become liable in payment of annual contributions under the Act of 1898 may within

ten days of becoming so liable redeem the whole of the annual contributions payable by him by making payment to the Widows' Fund of such sum as may for the time being be fixed by the contributors.

(2) Every contributor whether admitted before or after the commencement of this Order may at any term of Whitsunday or Martinmas on giving one month's notice in writing to the chamberlain redeem the whole of the contributions payable by him or such part thereof as may then remain unpaid by making payment to the Widows' Fund of such sum as may be fixed from time to time by the actuary and approved by the contributors.

9. Every contributor—

Marriage tax.

(a) admitted a member before the commencement of this Order who may hereafter marry; or

(b) admitted a member after the commencement of this Order who at the time of his admission is married or may thereafter marry;

whose age shall exceed that of his wife by six years or upwards shall in addition to the entry money and contributions exigible from him pay to the Widows' Fund a marriage tax for each year or part of a year after the first five by which his age exceeds that of his wife according to the table set out in the Third Schedule to this Order (or any alterations thereof prepared by the actuary and approved by the contributors and in force at the date of his marriage).

10. Every contributor whether admitted a member before or after the commencement of this Order who has married or who may marry the widow of a former contributor shall be exempted from the marriage tax in respect of such marriage and shall also be exempted from the contributions exigible in consequence of such marriage.

Exemption from marriage tax &c. in certain cases.

11.—(1) Periodical investigations into the state of the Widows' Fund the adequacy thereof for payment of the annuities charged and that may become charged thereon and the circumstances connected therewith shall be made by the actuary.

Periodical investigations of Widows' Fund.

(2) The first investigation to be made after the commencement of this Order shall be at such date as shall be fixed by the contributors not being later than the first day of September one thousand nine hundred and fifty-three and thereafter investigations shall be made at such intervals as shall be fixed by the contributors from time to time but not more than seven years shall elapse between any two investigations.

12. Section 85 (Conditions of increase of annuity) of the Act of 1898 shall be read and have effect as if the following subsection were substituted for subsection (2) thereof (that is to say):—

Amendment of section 85 of Act of 1898.

“(2) Unless the actuary certifies that the calculated value of the annuities at the rate to which it may be proposed to increase the same payable to the widows then on the fund and which may become payable to the widows of the then existing contributors together with an allowance for expenses does not exceed the amount of the fund in hand (including as aforesaid) together with the calculated value of the future contributions of the then existing contributors; and ”.

Ch. ii. *Edinburgh Merchant Company* II GEO. 6.
Widows' Fund (Amendment) Order Confirmation Act, 1947.

Amendment of
section 86 of
Act of 1898.

13. Section 86 (Conditions of reduction of annuity) of the Act of 1898 shall be read and have effect as if the following subsection were substituted for subsection (2) thereof (that is to say):—

“(2) Unless the actuary certifies that the amount of the reduction which is proposed to be made is necessary to place the Widows' Fund in a state of solvency; and ”.

Provisions as to
increase of entry
money and
contributions.

14. If an addition is at any time hereafter made under the provisions of the Act of 1898 and this Order to the amount of the annuity payable to widows or if the actuary who has conducted an investigation under the said provisions reports that owing to a falling off in the return obtainable on the invested funds or from any other cause affecting the stability of the Widows' Fund the amount of the entry money and contributions payable to the Widows' Fund require to be increased the contributors shall at a meeting specially called for the purpose alter the same to such amounts as may in the opinion of the actuary be necessary to make the entry money and contributions fully adequate to the provision of the annuities to the widows of the future members unless three-fourths of the members present and voting at such meeting decide with the approval of the actuary to alter the entry money and contributions to some lesser amounts.

Additions may
be made on
entry money or
on contributions
or both.

15. The contributors may make the increased payments provided for in the immediately preceding section of this Order either wholly upon the entry money or wholly upon the contributions or by increasing the number of contributions or partly by all or any of such methods and in such proportions as they may deem most expedient and if at any time any addition is made to the rate or number of contributions a corresponding addition shall likewise be made by the contributors to the redemption money referred to in the section of this Order of which the marginal note is “Redemption of contributions.”

Amendment
of section 39 of
Act of 1898.

16. The proviso to section 39 (Every person admitted a member to contribute to Widows' Fund) of the Act of 1898 is hereby repealed.

Costs of Order.

17. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Trustees as part of the expenses of management of the Widows' Fund.

SCHEDULES.

FIRST SCHEDULE.

PAYMENTS TO BE MADE BY ENTRANTS WHO ARE MARRIED OR
 SUBSEQUENTLY MARRY.

Age Next Birthday following Admission or Marriage.	Half-yearly Payments.	Age Next Birthday following Admission or Marriage.	Half-yearly Payments.
22	£4 19 6	39	£11 8 0
23	5 2 6	40	12 2 0
24	5 6 0	41	12 17 0
25	5 10 0	42	13 14 0
26	5 14 6	43	14 12 6
27	5 19 6	44	15 12 6
28	6 5 0	45	16 14 6
29	6 11 0	46	17 19 6
30	6 18 0	47	19 7 0
31	7 5 6	48	20 18 0
32	7 13 6	49	22 15 0
33	8 2 0	50	24 18 6
34	8 11 0	51	27 10 6
35	9 0 6	52	30 13 6
36	9 10 6	53	34 13 6
37	10 2 0	54	39 18 0
38	10 14 6	55	47 3 6

SECOND SCHEDULE.

SUMS TO BE PAID BY MEMBERS WHO ARE MARRIED
 OR SUBSEQUENTLY MARRY AND WHO ELECT UNDER SECTION 8
 (REDEMPTION OF CONTRIBUTIONS) OF THIS ORDER TO REDEEM
 THEIR CONTRIBUTIONS.

Age Next Birthday.	Single Payment.	Age Next Birthday.	Single Payment.
22	£197 0 0	39	£315 0 0
23	201 0 0	40	323 0 0
24	205 0 0	41	331 0 0
25	210 0 0	42	339 0 0
26	215 0 0	43	347 0 0
27	221 0 0	44	354 0 0
28	227 0 0	45	361 0 0
29	234 0 0	46	368 0 0
30	241 0 0	47	374 0 0
31	249 0 0	48	380 0 0
32	257 0 0	49	386 0 0
33	265 0 0	50	391 0 0
34	273 0 0	51	396 0 0
35	281 0 0	52	400 0 0
36	289 0 0	53	404 0 0
37	297 0 0	54	407 0 0
38	306 0 0	55	410 0 0

THIRD SCHEDULE.

MARRIAGE TAX: AMOUNT PAYABLE FOR EACH YEAR OR
 PART OF A YEAR OVER FIVE YEARS BY WHICH THE AGE OF THE
 HUSBAND EXCEEDS THAT OF HIS WIFE.

Age Next Birthday.	Amount.	Age Next Birthday.	Amount.
25 and under	£8 0 0	46	£15 10 0
26	8 3 0	47	16 0 0
27	8 6 0	48	16 10 0
28	8 10 0	49	17 0 0
29	8 14 0	50	17 10 0
30	8 18 0	51	18 0 0
31	9 2 0	52	18 10 0
32	9 6 0	53	19 0 0
33	9 12 0	54	19 10 0
34	9 19 0	55	20 0 0
35	10 7 0	56	20 10 0
36	10 15 0	57	21 0 0
37	11 3 0	58	21 10 0
38	11 12 0	59	22 0 0
39	12 1 0	60	22 10 0
40	12 10 0	61	23 0 0
41	13 0 0	62	23 10 0
42	13 10 0	63	24 0 0
43	14 0 0	64	24 10 0
44	14 10 0	65	25 0 0
45	15 0 0	or any greater age	

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